

		IV. <u>Conclusion</u> The motion for leave to file a cross-complaint is granted as to LOM’s claims that directly arise from Llauger’s alleged conduct. It is denied as to all claims arising from the Wyndham and Diamond matters and all claims brought by Folk and Wilson.
2	Aerotek Affiliated Services, Inc. vs. Golledge 2022-01281583	Defendant’s Motion for Leave to File Cross Complaint Defendant Jobot, LLC moves for leave to file a cross-complaint. The motion is GRANTED. Jobot is to file and serve the proposed cross-complaint (which is attached to the amended notice of motion (ROA 355), with proposed exhibits filed across multiple entries in the register of actions) by no later than September 28, 2026. <u>GROUND FOR RULING</u> The parties agree the cross-complaint Jobot seeks to file is compulsory. (See Opp. (ROA 372) at p. 2.) Leave to file a compulsory cross-complaint “shall” be granted when a party fails timely to file one if the party seeking leave “acted in good faith.” (CCP § 426.50.) Leave to amend should be liberally granted “to avoid forfeiture of causes of action.” (<i>Ibid.</i>) This is a matter involving alleged employee-poaching by Jobot. As the 21st affirmative defense in its answer to the 2AC (ROA 164), Jobot alleges that Plaintiffs’ claims are based on restrictive covenants in employment agreements that violate California law and are therefore unenforceable. The proposed cross-complaint seeks a declaration that these covenants, in specific employment agreements attached to the cross-complaint, are unenforceable. That is, the proposed cross-complaint effectively converts the affirmative defense to an affirmative claim for relief. Counsel for Jobot declares that the number of employees at issue has changed over the course of the case. At one point, there were nearly 90 at issue. As of June 2026, Plaintiffs reduced the number of at-issue employees from nearly 90 to 30. (Heffner Decl. (included in ROA 355) ¶¶ 3-4.) At a recent status conference, Jobot’s counsel explained that Jobot had a particular interest in having the enforceability of the restrictive covenants litigated, and it was worried (based on how related cases in other jurisdictions have progressed) that the case might be resolved without addressing that issue. (See Scheiderer Decl. (ROA 374) Ex. A.) In its reply, Jobot argues that by bringing an affirmative cross-claim for declaratory relief, it can ensure the enforceability issue is litigated regardless of how Plaintiffs plan to proceed on their own claims. This is more than sufficient for the Court to conclude Jobot has acted in good faith by bringing this motion. In particular, the sudden downward shift in employees at issue in June 2026 suggests Plaintiffs might attempt to press for a resolution that never addresses enforceability. Jobot acted promptly upon realizing this possibility. Plaintiffs repeatedly argue that Jobot has proffered no reason at all for its delay in bringing this motion. They ignore counsel’s testimony about the June 2026 change in the number of employees at issue and counsel’s comments (in a transcript Plaintiffs submit to the Court) about how related cases have progressed. This case is nothing like <i>County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan, LLP</i> (2025) 115 Cal.App.5th 489 or <i>Gherman v. Colburn</i> (1977) 72 Cal.App.3d 544, both cited by Plaintiffs. In <i>Quinn Emanuel</i>, the defendant waited to move for leave to file a compulsory cross-complaint until after summary judgment in the plaintiff’s favor had already been granted. (<i>Quinn Emanuel, supra</i>, 115 Cal.App.5th at p. 509.) In <i>Gherman</i>, the defendant moved for leave to file a compulsory cross-complaint on the first day of trial, and the record contained detailed evidence of bad faith. (<i>Gherman, supra</i>, 72 Cal.App.3d at pp. 558-560.) Here, there is no trial date on calendar, and

		the only evidence of bad faith adduced by Plaintiffs is Jobot’s delay in seeking relief—a delay that, contrary to Plaintiffs’ argument, is well-explained. Accordingly, the motion is granted.
3	Marquez vs. CSL Berkshire Operating LLC 2025-01518232	Plaintiff’s Motion to Dismiss Plaintiff Hermina R. Marquez’s motion to dismiss pursuant to CRC 3.770 is GRANTED. On July 23, 2026, Defendant CSL Berkshire Operating Company, LLC served a CCP § 998 offer on Plaintiff. Plaintiff accepted the offer on July 30. (Carlin Decl. (included in ROA 45) ¶ 2 & Ex. 1.) The parties agreed that Defendant will pay Plaintiff \$17,005 to settle her individual claims, plus attorney’s fees in an amount to be determined. (<i>Id.</i>, at ¶ 3.) In the meantime, the Ventura County Superior Court has preliminarily approved a class and PAGA settlement in <i>Orozco v. Clearwater Senior Living</i>, No. 202200568082CUOE. The <i>Orozco</i> case involves identical overlapping class and PAGA claims on behalf of similarly situated employees. (<i>Id.</i>, ¶ 6 & Ex. 2.) In this case, on the other hand, no class has been certified, no notice of this action has been sent to putative class members, and neither Plaintiff nor her counsel have contacted unrepresented employees regarding this case. (<i>Id.</i>, ¶ 5.) Plaintiff’s motion complies with the requirements of CRC 3.770. It is granted. Her individual claims are dismissed with prejudice, and her class and PAGA claims are dismissed without prejudice.
4	Viramontes vs. Prestige Design Center, Inc. 2021-01179611	Plaintiff’s Motion to Correct Clerical Error in Judgment Plaintiffs’ unopposed motion to correct clerical errors in the judgment is GRANTED. CCP § 473(d) provides: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” Plaintiffs contend the judgment in this class and PAGA action (ROA 434) contains two clerical errors. First, while the motion lists various Court-approved deductions from the agreed-upon gross settlement amount, the Gross Settlement Amount (GSA) itself is never listed. Second, because the GSA is never listed, the net settlement amount payable to class members cannot be calculated. It is undisputed that the GSA in this matter is \$527,752.93. (LaCour Decl. (ROA 464) Ex. C, at ¶ 23.) Taking the deductions from the GSA listed in the judgment, the NSA is \$243,720.93. “The difference between judicial and clerical error rests not upon the party committing the error, but rather on whether it was the deliberate result of judicial reasoning and determination. The distinction between clerical error and judicial error is whether the error was made in rendering the judgment, or in recording the judgment rendered.” (<i>Rochin v. Pat Johnson Manufacturing Co.</i> (1998) 67 Cal.App.4th 1228, 1238.) Here, the omission of the GSA and resulting NSA is an error in recording the judgment rendered. While the deductions taken from the GSA were subject to the Court’s discretion, the GSA was fixed by the parties’ settlement. There is no dispute that whatever amount is left over following the discretionary deductions would, <i>without</i> an exercise of the Court’s discretion, become the Net Settlement Amount (NSA). The Court will therefore correct the clerical error in the judgment by amending it to add the amounts of the GSA and NSA.
5	Diaz vs. Precision Waterjet Inc.	Plaintiff’s Motion for Final Approval